

CV-25-003510 BANK OF AMERICA NA vs BANUELOS, LOLO M – Defendant's Motion to Set Aside Default and Default Judgment – DENIED.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: No service of the motion is on file, and the declaration does not show good cause and is untimely. The Court lacks authority to grant the motion. Plaintiff filed the complaint on April 14, 2025. Defendant failed to answer the complaint or otherwise appear and defend the action. On August 5, 2025, default and the clerk's judgment were entered against Defendant. On November 13, 2026, the abstract of judgment issued. On May 14, 2026, Defendant, appearing in pro per, submitted the instant motion to set aside default and default judgment pursuant to Code of Civil Procedure, sections 473(b) and 473.5. The motion is accompanied by a declaration. "The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473.) "Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Id.) In his declaration, Defendant states that he was served with the complaint and summons but did not understand that he needed to file a response. Defendant believed he could have just appeared in court. Defendant states that he appeared on a hearing date and found out a default judgment had been entered. Section 473(b) requires that motions for relief "shall be made within a reasonable time, in no case exceeding six months, after the judgment . . . was taken." (Code Civ. Proc., § 473.) Here, the default and clerk's judgment were entered on August 5, 2025. Defendant's motion was not filed until May 14, 2026, which is over 9 months after the judgment was entered. Defendant's motion is therefore untimely because it was not made within six months of the judgment.

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